

19STCV21210 19STCV21210

County: los-angeles

Division: Civil Law and Motion

Department: 310

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Case Number: 19STCV21210 Hearing Date: June 26, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: June 26, 2026

Case Name: Haney v. Church of Scientology, et al.

Case No.: 19STCV21210

Matter: Application for Pro Hac Vice Admission

Moving Party: Plaintiff Valerie Haney

Responding Party: Defendant Church of Scientology

Notice: OK

Ruling: The Application is denied.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

Plaintiff Valerie Haney seeks pro hac vice admission for Gaetano A. D'Andrea.

Defendant Church of Scientology opposes the Application.

An out-of-state attorney may appear in a California court at the discretion of the trial judge, provided an active member of the State Bar of California is associated as counsel of record. California Rules of Court (CRC), Rule 9.47 governs out-of-state attorneys practicing law temporarily in California as part of pending litigation. Rule 9.47(c) requires that the out-of-state attorney "promptly" seek formal authorization to appear. Failure to seek that authorization promptly ends the attorney's temporary eligibility to practice in this state.

Here, the initial complaint was filed on June 18, 2019. Applicant Gaetano A. D'Andrea's name has appeared on nearly 50 filings over a span of nearly seven years before this formal Application was filed on March 4, 2026. Plaintiff's current California counsel, Kristen A. Vierhaus, submitted a declaration stating that from the case's inception, Mr. D'Andrea "has been directing all substantive issues in the case."

Directing all substantive issues in California litigation constitutes the practice of law in California. (*Birbrower, Montalbano, Condon & Frank v. Superior Court* (1998) 17 Cal.4th 119, 128-130.) Waiting nearly seven years to regularize pro hac vice status completely fails the "promptness" requirement of Rule 9.47(c). Consequently, Applicant's eligibility to practice under the temporary safe harbor has terminated.

The Court will note some factual discrepancies. For example, on March 6, 2026, in response to Court inquiries, counsel filed a "Notice re: Clarification of Record" asserting that Applicant "did not appear in this action... and has never... appeared as counsel of record." The record indicates, however, that Mr. D'Andrea physically addressed this Court and handled oral argument as sole counsel for Plaintiff at a status conference on February 2, 2021.

Pro hac vice admission is a privilege, not a right. It requires strict adherence to the California Rules of Professional Conduct. As that was not the case here, the Application is denied.

Moving party to give notice.